



Coroners' Juries Act 1983

1983 CHAPTER 31

An Act to make fresh provision with respect to the qualifications of persons eligible to serve on coroners' juries; to provide criminal penalties for evasion of service on a coroner's jury; to amend section 26 of the Coroners (Amendment) Act 1926; and for connected purposes.

[13th May 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following section shall be inserted in the Coroners Act 1887 after section 3—

"Qualifications of jurors.

3A.—(1) A person shall not be qualified to serve as a juror at an inquest held by a coroner unless he is for the time being qualified to serve as a juror in the Crown Court, the High Court and county courts in accordance with section 1 of the Juries Act 1974.

Qualifications of jurors.
1887 c. 71.

1974 c. 23.

(2) If a person serves on a jury knowing that he is ineligible for such service under Group A, B or C in Part I of Schedule 1 to that Act he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(3) If a person serves on a jury knowing that he is disqualified for such service under Part II of that Schedule he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 5 on the standard scale.

(4) The appropriate officer may at any time put or cause to be put to any person who is summoned under section 3 of this Act such questions as he thinks fit in order to establish whether or not the person is qualified to serve as a juror at an inquest.

(5) Where a question is put to any person under subsection (4) of this section, if that person refuses without reasonable excuse to answer, or gives an answer which he knows to be false in a material particular, or recklessly gives an answer which is false in a material particular, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(6) If any person—

(a) duly summoned as a juror at an inquest makes, or causes or permits to be made on his behalf, any false representation to the coroner or the appropriate officer with the intention of evading service as such juror; or

(b) makes or causes to be made on behalf of another person who has been so summoned any false representation to the coroner or the appropriate officer with the intention of enabling that other person to evade such service;

he shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 3 on the standard scale.

(7) A coroner may authorise a person to perform the functions conferred on the appropriate officer by subsection (4) of this section and references in this section to the appropriate officer shall be construed as references to the person so authorised.

(8) In this section “the standard scale” has the meaning given by section 75 of the Criminal Justice Act 1982.”

1982 c. 48.

Extension of
rule-making
power under
section 26 of
the Act of
1926.

1926 c. 59.

2. In section 26 of the Coroners (Amendment) Act 1926 (power of Lord Chancellor to make procedural rules) the following subsection shall be inserted as subsection (2)—

“(2) Without prejudice to the generality of the preceding provisions of this section, rules under this section may make provision for persons to be excused service as jurors at inquests in such circumstances as the rules may specify.”

3.—(1) This Act may be cited as the Coroners' Juries Act 1983. Citation, commencement etc.

(2) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint.

(3) In section 3(2) of the Coroners Act 1887 (restriction on eligibility of certain persons to serve on coroners' juries) the words "an officer of the prison or " shall cease to have effect.

(4) Nothing in this Act shall have effect in relation to any inquest begun before the commencement of this Act or held by the coroner of the Queen's household.

(5) This Act shall not extend to Scotland or Northern Ireland.